

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: June 12, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER EXTENDING DEADLINES

On June 12, 2026, Complainant filed Complainant's Status Report Regarding Amended Schedule and Request to Accept Late Filing ("Motion to Extend").

By way of background, on March 20, 2026, I issued an Order Following Status Conference (the "March 20 Order"), which set the remaining schedule for this case:

May 22, 2026	Close of discovery and completion of depositions (if any)
July 6, 2026	Complainant's Opening Brief, Proposed Findings of Fact, and Appendix
August 20, 2026	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
September 14, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

Since the March 20 Order, several discovery issues have arisen in this matter. On June 4, 2026, I held a status conference, and subsequently issued an Order Following Status Conference on June 5, 2026. Among other things, I ordered the parties to file a joint motion to amend the case schedule no later than June 10, 2026.

On June 12, 2026, Complainant filed a document that I will treat as a Motion to Extend. In it, Complainant attached several emails between the parties. In summary, the parties agreed to a July 9, 2026, discovery cut-off, although Respondent also stated that "Respondent remains unavailable from June 20, through July 6[.]" (Motion to Extend, at 3). In subsequent emails, Respondent clarified that some witnesses were available before July 6, and that Respondent would make its best efforts to make identified witnesses available. (Motion to Extend, at 3-4). Complainant also requested that the Motion to Extend be accepted despite being untimely.

I will accept the Motion to Extend despite being filed after the June 10, 2026, deadline in order to move this case forward. Further, as the parties essentially agreed to a schedule, and in light of Respondent's representation to make reasonable efforts to make its witnesses available, I will enter the agreed-upon schedule.

Accordingly, the Motion to Extend is **GRANTED**. I **ORDER** that the remaining case schedule be extended as follows.

June 19, 2026 ¹	Deadline for submission of additional discovery requests
June 25, 2026	Depositions, if any, begin
July 9, 2026	Close of discovery/completion of depositions
July 15, 2026	Deadline for Complainant to amend Renewed Motion, if amended
July 22, 2026	Deadline for Respondent's response to Renewed Motion, if amended
August 25, 2026	Complainant's Opening Brief, Proposed Findings of Fact, and Appendix
September 10, 2026	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
September 22, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

The parties are reminded and encouraged to work together to complete discovery timely. I would strongly prefer to resolve this matter on the merits, but default judgment is an option if a party fails to cooperate.²

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
Date: 2026.06.12
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Richard Ambrow
Administrative Law Judge

¹ I accept the dates the to which the parties have agreed. I note, however, that the rules regarding interrogatories and requests for document production give the other party 30 days to respond. (46 C.F.R. §§ 502.145(b)(2); 502.146(b)(2)). I also note that Paragraph 13 of the Initial Order states: "Compliance with the date set for completion of discovery requires that the parties serve discovery requests sufficiently in advance of the discovery cutoff so that all responses and objections are due on or before that date." Finally, I also note that Complainant should be prepared to go forward on its claim for reparations should it succeed on the merits.

² Respondent has maintained throughout this case that it did not act as a non-vessel-operating-common-carrier in relation to the two shipments at issue, and therefore should prevail. Even if Respondent is correct (to be clear, I have not yet decided this issue as I want to make sure all arguments and evidence are properly and fully presented before making a decision), Respondent may nevertheless be subject to a default judgment if it fails to cooperate during discovery. Cooperation in the discovery process, therefore, is strongly encouraged.